

24NNCV02578 24NNCV02578

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Case Number: 24NNCV02578 Hearing Date: August 21, 2026 Dept: A

TENTATIVE RULING

AUGUST 21, 2026

MOTION TO COMPEL FURTHER RESPONSES

Los

Angeles Superior Court Case # 24NNCV02578

MP: Cross-Defendant/Cross-Complainant

Tai Guo

RP: Defendants/Cross-Defendants

Jianhua Fu and Hua Meng

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

A.

Operative Complaint

On June 27, 2024, Plaintiff East West Bank ("EWB") filed its Complaint in Interpleader naming Che-Min Kuo ("Kuo"), Jianhua Fu ("Fu"), Hua Meng ("Meng"), and Annie Hou ("Hou") as Defendants.

On September 17, 2024, EWB's proposed order to deposit interpleader funds with the Court was granted. East West subsequently deposited \$1,275,047.68 in interpleader funds with the Court.

On January 27, 2025, the Court entered the Stipulation for an Order to Deposit the Interpleader Funds Pursuant to the Deposit Order and Plaintiff East West Bank's Notice of Errata; Order, whereby EWB was authorized to deposit with the Clerk of the Court the \$1,274,047.68 amount, which is the correct and amended interpleader amount subject to the Complaint and Notice of Errata.

B.

Cross-Complaints

On September 16, 2024, Hou filed her Cross-Complaint against Fu and Kuo. Hou alleges in February 2024, Fu approached Hou "...about needing a large amount of RMB currency in China because Fu had made an agreement with an individual who wanted to convert their US dollars situated in the United States into local RMB currency in China." (Hou CC ¶ 17.) Hou alleges the individual with whom Fu made the agreement was Kuo. (Hou CC ¶ 18.) Hou alleges that she and Fu subsequently entered into a verbal agreement whereby Hou would transfer a specific sum of RMB to Fu's accounts in China and, in exchange, U.S. funds would be deposited in Hou's account. (Hou CC ¶ 19.) On February 16, 2024, Hou opened an account with East West to facilitate this agreement. (Hou CC ¶ 14.)

On April 2, 2025, Tai Guo (Roe 1) filed a Cross-Complaint against Fu and Meng for Violation of California Identity Theft Act.

On June 30, 2025, Fu and Meng filed a First Amended Cross-Complaint ("Fu FACC") against Kuo, Guo, and YQW Invest LLC ("YQW") for: (1) False Promise; (2) Breach of Fiduciary Duty; (3) Common Counts – Money Had and Received; and (4) Equitable Indemnity.

Fu alleges he met Vincent Song ("Song," believed to be an alias of Guo) in September 2023 and disclosed to Song that Fu held RMB in Chinese bank accounts and wanted to convert this currency to US dollars. (Fu FACC, ¶¶12-13.) Song claimed he could assist in the currency exchange. (Id., ¶13.) Fu initially requested Song transfer \$1.24 million to Hou's account in EWB and \$60,000 to Meng and Fu's shared account in EWB. (Id., ¶14.) Song disagreed with the instructions and instead instructed Fu to first wire the RMB to various Chinese bank accounts. (Id., ¶15.) Between February 2, 2024, and February 8, 2024, Fu wired 10.5 million RMB to Song's assigned accounts in China. (Id., ¶21.) Kuo then wired the following amounts to Fu and Meng's joint account with EWB: February 6, 2024: \$650,000.00; February 7, 2024: \$450,000.00; February 8, 2024: \$200,000.00. (Id., ¶22.) Fu and Meng allege that Kuo then contacted EWB and claimed the transfers were unauthorized. (Id.) They allege that Kuo was a co-conspirator, letting Song use his account to conduct a wire transfer, later claimed it was unauthorized, and claimed the right to the money. (Id., ¶29.)

On October 9, 2025, Kuo filed a Second Amended Cross-Complaint against Fu, Meng, Hou, YQW, and EWB for: (1) Declaratory Relief against all Cross-Defendants; (2) Negligence against EWB; (3) Negligent Hiring, Supervision, or Retention against EWB; (4) Breach of Contract against EWB; (5) Fraud by Concealment or Deceit against Fu (dismissed), Meng (dismissed), Hou, and YQW; (6) Conversion against all Cross-Defendants; (7) Common Count: Money Had and Received against Fu, Meng, Hou, and YQW; and (8) Constructive Trust and Accounting against EWB. Kuo alleges that he was incarcerated in Taipei at the time of the alleged transactions and that the wire transfers to EWB were the result of identity theft and financial crimes. (Kuo SACC ¶¶13, 18.) On March 4, 2026, the Stipulation and Order for Partial Dismissal of Cross-Defendants Jianhua Fu and Hua Meng was entered whereby Kuo dismissed with prejudice Fu and Meng from the Fraud by Concealment or Deceit Cause of Action in Kuo's SACC. (Mar. 4, 2026 Stipulation at ¶1.)

On June 23, 2026, YQW was dismissed without prejudice from Kuo's SAXC.

MOTION ON CALENDAR:

On May 1, 2026, Guo filed a Motion to Compel Jianhua Fu's Further Responses to Special Interrogatory ("SROG") No. 11. On August 10, 2026, Fu filed an opposition. On August 14, 2026, Guo filed a reply.

LEGAL STANDARD:

A motion to compel further interrogatory responses may be brought based on: (1) answers that are evasive or incomplete, (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response, or (3) unmerited or overly generalized objections. (C.C.P. § 2030.300(a).) The motion must be accompanied by a meet and confer declaration. (C.C.P. § 2030.300(b)(1).) The motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. § 2030.300(c).)

The responding party has the burden of justifying the objections thereto. (Coy v. Sup.Ct. (1962) 58 Cal.2d 210, 220-21.)

ANALYSIS:

A.
Separate Statement

Preliminarily, Fu argues that the motion must be denied because Guo did not file a separate statement pursuant to CRC Rule 3.1345.

C.C.P. § 2030.300(b)(2) states: "In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute." (See CRC Rule 3.1345(b)(2) [stating a separate statement is not required when no responses have been provided to discovery or when the court has allowed the moving party to submit a concise outline].) Although a separate statement

was not filed, the Court recognizes that only one SROG request was at issue. As such, in lieu of a separate statement, the Court will accept Guo's memorandum of points and authorities in support of the motion as a sufficient concise outline of the SROG at issue. Furthermore, Guo filed a separate statement to correct the error with the reply brief.

As the failure to timely file a separate statement does not appear to have prejudiced Fu's ability to timely oppose the motion or the Court to evaluate the substance of the parties' positions, the Court will proceed with the merits.

B.

Meet and Confer Efforts
and Supplemental Responses

Fu argues that he served supplemental responses on March 19, 2026, resolving all disputes except as to SROG No. 11 to which he maintains his privacy objections. He makes this point to clarify any misunderstandings regarding whether he supplemented responses. As SROG No. 11 is the only discovery request at issue, this is the only SROG that will be addressed.

Fu also argues that

Guo did not adequately meet and confer on SROG No. 11 until after Fu served supplemental responses to the SROGs except as to No. 11. (Opp. at pp.5-6.) Fu contends that Guo's meet and confer letters on December 30, 2025, lumped SROG No. 11 with nine other SROGs in discussing the objections as to compound/undefined term objections, but did not address vagueness, overbreadth, or privacy.

(Lin Decl., Ex. A.) On January

13, 2026, Fu agreed to provide further responses to the SROGs. (Id., Ex. B.) On January 22, 2026, Guo sent another meet and confer letter addressing SROG Nos. 2.3-2.7 and RPD Nos. 1-14. (Id., Ex. C.) On March 19, 2026, Fu served supplemental

responses to the SROG except No. 11. (Id.,

Ex. D.) Fu argues that it was only on

March 26, 2026 that Guo specifically met and conferred about No. 11, to which

Fu's counsel replied on March 27, 2026 maintaining the privacy objection and

requesting to schedule a telephonic conference by April 3, 2026. (Id., Exs. E-F.) On April 22, 2026, Guo responded with a clarification of terms and arguing that the privacy/overbreadth objections were

meritless. (Id., Ex. G.) On April 26, 2026 Fu's counsel responded

maintaining the objections. (Id.,

Ex. H.)

The Court finds that even if Guo did not specifically address SROG No. 11 in the December 30, 2025 meet and confer letter, Guo's counsel nonetheless address the SROGs at issue—including No. 11. Fu then provided supplemental responses to the SROGs at issue, except No. 11, such that Guo's counsel specifically addressed this SROG in subsequent meet and confer efforts. The Court does not find any waivers with respect to SROG No. 11 in the meet and confer efforts or that Guo did not adequately meet and confer or raise SROG No. 11 during the overall meet and confer process.

C.

Discussion

Guo seeks Fu's further response to SROG No. 11.

SROG No. 11 ask Fu to: "State the source of all renminbi YOU received which you allegedly attempted to exchange into US dollars." (Gurwell Decl., Ex.

A.)

Fu initially objected that the SROG contained subparts or was compound, conjunctive, or disjunctive (C.C.P. § 2030.060(f)), the SROG contained at least 17 subparts including identification of documents and identification of individuals; and the undefined terms or phrases were objectionable. (Gurwell Decl., Ex. B.)

Fu then objected in the first amended responses that the SROG was vague as to the terms "source," "all renminbi," "received," "allegedly," and "attempted to exchange"; the SROG was overbroad, unduly burdensome, and not reasonably limited in time or scope; it sought information that was irrelevant and/or not reasonably calculated to lead to the discovery of admissible evidence, as it sought details about Fu's personal financial affairs beyond the issue in this action; and it violated Fu's constitutional and statutory right to privacy, including financial privacy. (Id., Ex. G.)

The Court does not find the referenced

terms to be vague as the terms are generally understood words. For example, “renminbi” references Chinese currency, which Fu himself alleged in his FACC that “During their conversation ‘Song’ learned that Fu held substantial amounts of renminbi, the official Chinese currency (‘RMB’) in China and wanted to convert this currency to US dollars. ‘Song’ claimed that he could assist Fu in the currency exchange.” (Fu FACC, ¶13.)

Moreover, “received” and “allegedly” are ordinary words as defined in the dictionary and alleged in this action, and “attempted to exchange” in the context of the SROG means refers to the exchange of renminbi to U.S. dollars. The terms are not vague or ambiguous as referenced. As alleged in

Fu’s FACC, he was planning to exchange the currency for himself and his business partner Annie Hou, such that he requested Song to transfer \$1.24 million to Hou’s account and \$60,000 to Meng and Fu’s shared account. (Id., ¶14.) Between February 2, 2024 and February 8, 2024,

at “Song’s” direction, Fu wired a total of 10,500,000 RMB to Song’s assigned accounts in China. (Id.,

¶21.) SROG No. 11 directly addresses these allegations. As such, the terms are not vague as argued by Fu nor are they irrelevant to the litigation, as Fu directly put such allegations at issue. Thus, the objections based on vague terms and irrelevance are overruled.

Next, Fu objected that the SROG was

overbroad, unduly burdensome, and not reasonably limited in time or scope. Guo argues that the SROG is not overbroad or burdensome since, following Guo’s April 22, 2026 third meet and confer effort to limit the term “source” and confirm that the SROG was limited in scope to the currency exchange transactions described in Fu’s own FACC. (Gurwell Decl., ¶13, Ex. K.) In his meet and confer attempts, Mr. Gurwell

defined “source” as the persons/entities from whom or which Fu received the renminbi at issue and/or the accounts, transactions, or business dealings through which Fu came to possess the funds.

(Id.) He sought: “In light

of the foregoing clarification, we request that Mr. Fu provide a verified supplemental response to Special Interrogatory No. 11, limited to identifying the source of the renminbi involved in the currency exchange transactions described in his Cross-Complaint, on or before April 27, 2026.” (Id.)

As currently worded, the SROG does not include any temporal or scope limitations and potentially seeks any renminbi that Fu received which he attempted to exchange into US dollars. However, based on the meet and confer attempts, the Court finds Guo's proposed limitation to be reasonable in part, such that it will be modified and limited to the source of the renminbi involved in the alleged currency exchange transactions described in Fu's FACC. However, the "on or before April, 27, 2026" is impermissibly broad as this does not provide any meaningful time limitation. As such, the timeframe will be limited to earliest one year before Fu wired RMB to "Song's" assigned accounts (or February 2, 2023) to the present. (The Court notes that since Fu allegedly made the RMB transfer to "Song" in February 2024, it may be that the SROG may be complied with by responding only to those transactions up to the dates of transfer as this SROG will be limited solely to the allegations of Fu's FACC.)

Lastly, Fu objected that the SROG seeks irrelevant information about Fu's personal financial affairs and violates his constitutional and statutory financial privacy.

"[I]ndividuals

have a legally recognized privacy interest in their personal financial information." (International Federation of Professional & Technical Engineers, Local 21, AFL-CIO v. Sup. Ct. (2007) 42 Cal. 4th 319, 330.) "The constitutional right of privacy does not provide absolute protection against disclosure of personal information; rather it must be balanced against the countervailing public interests in disclosure." (Hooser v. Superior Court (2000) 84 Cal.App.4th 997, 1004 disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531, 557.)

Here, Fu has put such funds directly at issue in this action by alleging that he sought to convert his and his partner Hou's renminbi into U.S. currency and that "Song" did not intend to perform the currency exchange as promised and Cross-Defendants did not return the funds. (Meng and Fu's FACC, ¶¶23-24, 35-36.) Guo argues that the nature of the funds' origin directly addresses the credibility of the innocent-victim narrative that underlies Fu FACC's allegations; however, if the funds originate from Kuo, YQW, or any source connected to the alleged scheme, Guo argues this would negate Fu's claim that he was an unsuspecting third party. (Mot. at p.6.) Guo also argues that the SROG addresses his

affirmative defenses regarding in pari delicto and fraudulent transactions, and Fu's standing to seek equitable relief for equitable indemnity.

Balancing the privacy protection with the countervailing public interest in disclosure, the Court finds that while there is a generally recognized individual right to financial privacy, the circumstances of this case and need for discovery outweigh the right to privacy. Such information is relevant to the claims and defenses presented in this case. However, to protect Fu's personal financial information, the parties should consider entering a protective order for further discovery in this action.

The motion to compel Fu's further response to SROG No. 11 is granted subject to the limitations set forth above and upon entering a protective order.

A.

Sanctions

Guo seeks \$7,915 in sanctions against Fu and his counsel of record (= [3.3 hours at \$550/hour] + [24.4 hours by legal assistant Seth Hadan at \$250/hour]). (Gurwell Decl., ¶3, Ex. M [Time Ledger].) While the Court granted this motion, it did so with certain limitations and on condition that the parties enter a protective order. As such, the Court finds that Fu had substantial justification in raising objections and opposing this motion. Accordingly, the request for sanctions is denied.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Cross-Defendant/Cross-Complainant Tai Guo's Motion
to Compel Further Responses came on regularly for
hearing on August 21, 2026, with appearances/submissions as noted in the minute
order for said hearing, and the court, being fully advised in the premises, did
then and there rule as follows:

THE
MOTION TO COMPEL JIANHUA FU'S FURTHER RESPONSES TO SROG NO. 11 IS GRANTED
SUBJECT TO LIMITATIONS THAT THE SOURCE OF THE RENMINBI INVOLVED IN THE ALLEGED
CURRENCY EXCHANGE TRANSACTIONS BE LIMITED TO THE ALLEGATIONS DESCRIBED IN FU'S
FACC AND LIMITED IN TIME TO FEBRUARY 2, 2023 TO THE PRESENT AND BE PRODUCED
SUBJECT TO A PROTECTIVE ORDER. RESPONSES ARE TO BE MADE WITHIN 30 DAYS OF THE ENTRY
OF THE PROTECTIVE ORDER.

NO SANCTIONS SHALL BE AWARDED.

CROSS-DEFENDANT GUO TO
PROVIDE NOTICE.

IT IS SO
ORDERED.